

Construction of 132 KV DC Geruani^o to Korikapur
(PSS) line by Chattisgarh state power
Transmission Company Limited.

Area:- 7.011 ha.

Encl:- 1. 1st stage approval letter
11/10/2021
2. 2nd stage approval letter
8/06/2022

भारत सरकार
पर्यावरण वन एवं जलवायु परिवर्तन मंत्रालय
एकीकृत क्षेत्रीय कार्यालय,
अरण्य भवन, नार्थ ब्लॉक,
सेक्टर -19, नया रायपुर, अटल नगर
छत्तीसगढ़ - 492002
ईमेल- iro.raipur-mefcc@gov.in



GOVERNMENT OF INDIA
MINISTRY OF ENVIRONMENT, FORESTS &
CLIMATE CHANGE
INTEGRATED REGIONAL OFFICE
ARANYA BHAWAN, NORTH BLOCK, SECTOR-19,
NAYA RAIPUR, ATAL NAGAR, CHHATTISGARH - 492002
Email - iro.raipur-mefcc@gov.in

F.No. FC-II / IROCH-08/2021/302

Dated: 11/10/2021....

To

✓ The Principal Secretary,
Govt. of Chhattisgarh,
Forest Department,
Mantralaya, Mahanadi Bhavan,
New Raipur (CG) - 492001

Sub: Diversion of 7.011 forest land for non-forest purpose under Forest Conservation Act, 1980 proposed for 132 KV DCDS Transmission Line from 220/132 KV SS Girwani to TSS Korichhapar in favour of CSPTCL Raigarh in Raigarh Division in the state of Chhattisgarh.

Sir,

I am directed to refer to the State Government of Chhattisgarh's letter no F-5-09/2021/10-2 dated 25.05.2021 on the above subject seeking prior approval of the Central Government under Section - 2 of the Forest (Conservation) Act, 1980 and to the additional information given by the User agency in REC meeting. The Committee approved the proposal for grant of Stage-I approval under Forest (Conservation) Act.

After examination of the proposal of the State Government and on the basis of the approval of the proposal by the Regional Empowered Committee, the Central Government hereby accords '**In-Principle**' approval, under Section -2 of the Forest (Conservation) Act, 1980 for Diversion of 7.011 forest land for non-forest purpose under Forest Conservation Act, 1980 to the proposed 132 KV DCDS Transmission Line from 220/132 KV SS Girwani to TSS Korichhapar in favour of CSPTCL Raigarh in Raigarh Division in the state of Chhattisgarh, subject to fulfilment of the following conditions:

i. Legal status of the diverted forest land shall remain unchanged;

ii. **Compensatory Afforestation:**

Compensatory afforestation shall be taken up by the Forest Department over 14.022 ha degraded forest land of Compartment No. 1185 PF, at Raigarh District, in Raigarh Forest Division, at the cost of the user agency. As far as possible, a mixture of local indigenous species shall be planted and monoculture of any species may be avoided;

iii. The cost of Compensatory Afforestation at the prevailing wage rates as per compensatory afforestation scheme and the cost of survey, demarcation and erection of permanent pillars if required on the CA land shall be deposited in advance with the Forest Department by the project authority. The CA will be maintained for 10 years. The scheme may include appropriate provision for anticipated cost increase for works scheduled for subsequent years;

iv. NPV:

- f) The State Government shall charge the Net Present Value (NPV) for the 7.011 ha forest land being diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 28.03.2008, 24.04.2008 and 09.05.2008 in Writ Petition (Civil) No. 202/1995 and the guidelines issued by this Ministry vide its letter No. 5-3/2007-FC dated 05.02.2009 in this regard;
- g) Additional amount of the NPV of the diverted forest land, if any, becoming due after finalization of the same by the Hon'ble Supreme Court of India on receipt of the report from the Expert Committee, shall be charged by the State Government from the User Agency. The User Agency shall furnish an undertaking to this effect;
- h) All the funds received from the user agency under the project shall be transferred/ deposited to CAMPA fund only through e-portal (<https://parivesh.nic.in/>);
- v. No approach road shall be constructed in the forest area for transportation of steel and other material required for the transmission line. As far as possible the User Agency shall use the existing road and the proposed RoW for the transportation of the material and in the event of non-availability of such facilities, the User Agency shall transport material manually without construction of any path.
- vi. The User Agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required;
- vii. No labour camp shall be established on the forest land;
- viii. The User Agency shall provide firewood preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- ix. The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar;
- x. The forest land shall not be used for any purpose other than that specified in the proposal;
- xi. The User Agency shall ensure that because of this project, no damage is caused to the wildlife available in the area;
- xii. Width of right of way for the transmission line shall be limited to 27mts;
- xiii. The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
- xiv. The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;
- xv. The user agency shall install circuit breakers at suitable places besides maintain necessary ground clearance to prevent electrocution of wild animals;
- xvi. Felling of trees shall be restricted to only 165 trees and 35 Bamboo Clumps, throughout the length of the transmission line while remaining 412 trees will be kept intact by the User Agency. Any tree felling shall be done only when it is unavoidable and that too under strict supervision of the State Forest Department;

- xvii. To minimize the felling for construction of transmission line, user agency shall comply with the following guidelines:
- (a) Below each conductor, width clearance of 3 mts. would be permitted for carrying the tension stringing equipment. The trees on such strips may be felled but after stringing work is completed, the natural regeneration will be allowed to come up.
 - (b) One outer strip may be left clear to permit maintenance of the transmission line;
 - (c) In the remaining width the right of way felling/pollarding/pruning of trees will be done with the permission of the local forest officer whenever necessary to maintain the electrical clearance, trees shall be allowed to be felled or lopped to the extent required, for preventing electrical hazards by maintaining the minimum 4.0 meter clearance between conductors and trees. The sag and swing of the conductors are to be kept in view while working out the minimum clearance mentioned as above;
 - (d) User agency in consultation with the State Forest Department prepare a detailed scheme for creation and maintenance of plantation of dwarf species (preferably medicinal plants) in right of way under the transmission line, and provide funds for execution of the said scheme to the State Forest Department; and
 - (e) In case a portion of the transmission lines to be constructed is located in hilly areas, where adequate clearance is already available, trees shall not be cut;
- xviii. Height of transmission towers, in forest areas, wherever required, shall be increased to provide ground clearance to the extent maximum possible as per relevant permissible norms;
- xix. The user agency in consultation with the State Government shall create and maintain alternate habitat/home for the avifauna, whose nesting trees are to be cleared in this project. Bird's nests artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project;
- xx. The State Government shall ensure that settlement of rights, in terms of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, if any, has been completed in accordance with the Guidelines issued by the MoEF&CC in this regard;
- xxi. The User Agency shall submit six monthly self-compliance reports as on 1st January and 1st July of every year to this office as well as to the Nodal Officer of the State;
- xxii. The State Government shall monitor compliance of conditions of Forest Clearance and shall submit in this regard yearly report as on 31st December of every year;
- xxiii. Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife;
- xxiv. The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project;
- xxv. Grant of working permission to the extant proposal may be considered by the State Government in accordance with the provisions as contained in the MoEF&CC's Guidelines dated 7.01.2015; and
- xxvi. The compliance report shall be uploaded on e-portal (<https://parivesh.nic.in/>).

After receipt of a report on the compliance of conditions no (ii), (iii), (iv), (v), (xvi), (xvii) (d), (xix) and undertakings, duly authenticated by the competent authority in the State Government, in respect of all other conditions, from the State Government, formal approval will be considered in this regard under Section-2 of the Forest (Conservation) Act, 1980.

Yours faithfully,

Chaturbhuj
11/10/21

Chaturbhuj Behera
Inspector General of Forests

Copy to:

1. The PCCF, Government of Chhattisgarh, Raipur
2. The Nodal Officer FCA), O/o of the PCCF, Government of Chhattisgarh, Raipur.
3. Director (ROHQ), Ministry of Environment, Forest and Climate Change, Indira Paryavaran Bhawan, Jorbagh Road, Aliganj, New Delhi.
4. User Agency.
5. Guard File.

Chaturbhuj
11/10/21

Chaturbhuj Behera
Inspector General of Forests

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NAVA RAIPUR, ATAL NAGAR, CHHATTISGARH - 492002
Email - iro.raipur-mefcc@gov.in

F.No. FC-II/IROCH-08/2021 / 763

Date: 08/06/2022

To,

Principal Secretary (Forests),
Government of Chhattisgarh,
Forest Department, Mantralaya,
Mahanadi Bhavan, Nava Raipur, Atal Nagar (CG).

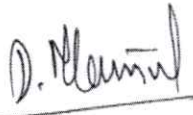
Sub: Diversion of 7.011 ha. forest land for non-forest purpose under Forest Conservation Act, 1980 proposed for 132 KV DCDS Transmission line from 220/132 KV SS Girwani to TSS Korichhapar infavour of CSPTCL Raigarh in Raigarh Division in the State of Chhattisgarh.

Sir,

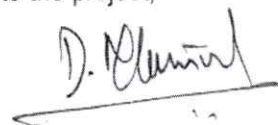
The under signed is directed to refer to the State Government of Chhattisgarh letter no. krmank/F-5-09/2021/10-2 dated 25.05.2021 on the above subject seeking prior approval of the Central Government, in accordance with Section-2 of the Forest (Conservation) Act, 1980 and to say that after careful examination of the proposal of the State Government, 'in-principle' approval was accorded by the Central Government vide letter of even number dated 11.10.2021. Now, the State Government of Chhattisgarh, vide letter no. krmank/F-5-09/2021/10-2 dated 22.04.2022 has submitted a report on the compliance of conditions stipulated in the 'in-principle' approval and requested the Central Government to grant final approval to the proposal.

In this connection, it is informed that on the basis of compliance report submitted by the State Government of Chhattisgarh, vide letter no. krmank/F-5-09/2021/10-2 dated 22.04.2022, the Central Government hereby accords **"Final Approval"** under Section - 2 of the Forest (Conservation) Act, 1980 for diversion of 7.011 ha. forest land for non-forest purpose under Forest Conservation Act, 1980 proposed for 132 KV DCDS Transmission line from 220/132 KV SS Girwani to TSS Korichhapar infavour of CSPTCL Raigarh in Raigarh Division in the State of Chhattisgarh, subject to the fulfilment of the following conditions:

- i. Legal status of the forest land shall remain unchanged;
- ii. **Compensatory Afforestation**
 - a) Compensatory Afforestation shall be taken up by the Forest Department over 14.022 ha degraded forest land of Compartment No. 1185 PF, at Raigarh District, in Raigarh Forest Division, at the cost of the user agency. As far as possible, a mixture of local indigenous species shall be planted and monoculture of any species may be avoided;
- iii. No approach road shall be constructed in the forest area for transportation of steel and other material required for the transmission line. As far as possible the User Agency shall use the existing road and the proposed RoW for the transportation of the material and in the event of non-availability of such facilities, the User Agency shall transport material manually without construction of any path.
- iv. The complete compliance of the FRA, 2006 shall be ensured by way of prescribed certificate from the concerned District Collector.
- v. The User Agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required;
- vi. The User Agency shall comply with the guidelines for laying transmission lines through forest areas issued by Ministry vide letter no. 7-25/2012-FC dated 05/05/2014 & 19/11/2014.
- vii. No labour camp shall be established on the forest land;


D. Mani

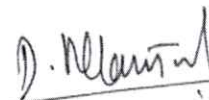
- viii. The User Agency shall provide firewood preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- ix. The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar;
- x. The forest land shall not be used for any purpose other than that specified in the proposal;
- xi. The User Agency shall ensure that because of this project, no damage is caused to the wildlife available in the area;
- xii. Width of right of way for the transmission line shall be limited to 27 mtrs;
- xiii. The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
- xiv. The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;
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- xx. The User Agency shall submit six monthly self-compliance reports as on 1st January and 1st July of every year to this office as well as to the Nodal Officer of the State;
- xxi. The State Government shall monitor compliance of conditions of Forest Clearance and shall submit in this regard yearly report as on 31st December of every year;
- xxii. Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife;
- xxiii. The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project;



- xxiv. Violation of any of these conditions will amount to violation of Forest (Conservation) Act, 1980 and action would be taken as per the MoEF&CC Guideline F. No. 11- 42/2017-FC dt 29/01/2018.; and
- xxv. The compliance report shall be uploaded on e-portal (<https://parivesh.nic.in/>).

This issues with the approval of the DDGF/RO (Central), MoEF&CC, IRO, Raipur.

Yours faithfully,

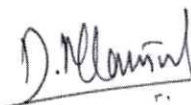


Dr. D. Manjunatha, IFS 8/6/21

Deputy Inspector General of Forests

Copy to:

1. The PCCF & HoFF, Government of Chhattisgarh, Sector-19, Atal Nagar, Naya Raipur (CG).
2. The Addl. PCCF & Nodal Officer (FCA), Govt. of Chhattisgarh, Sector-19, Atal Nagar, Naya Raipur (CG).
3. User Agency.
4. Guard File.



Dr. D. Manjunatha, IFS 8/6/2021

Deputy Inspector General of Forests